

Defendant states that Plaintiff “was permitted to occupy the property as a family member” and paid the mortgage in lieu of paying rent. (Aldama Decl., ¶10.) Defendant states that Plaintiff voluntarily moved out of the property more than two years ago, and another family member has occupied the property since then under the same arrangement, paying the mortgage directly to the lender. (Aldama Decl., ¶11.) Defendant also states that Plaintiff has not paid the taxes, insurance, or repairs since he moved out. (Aldama Decl., ¶13.) Defendant further states that improvements “were funded by the record owners,” i.e., Defendant and her husband, “including insurance proceeds received for covered losses,” but Defendant does not specify what those improvements were or how they compare to Plaintiff’s alleged improvements. (Aldama Decl., ¶14.)

Plaintiff concedes that he did not live in the house from 2015 to 2020 and from February 2025 to the present, and he only states that he paid the mortgage, taxes, insurance, and repairs while he lived in the house. Defendant presents evidence that other family members paid the mortgage under the same arrangement since Plaintiff moved out, and she and her husband paid for at least some improvements.

Plaintiff will have a high burden to show that his alleged equitable ownership overcomes Defendant’s legal ownership and, given that Plaintiff did not live in the home or pay the costs of ownership for more than six years of his alleged ownership, it does not appear Plaintiff can meet his burden of showing a probable validity of claim. (See Code Civ. Proc., § 405.32.)

Constructive Trust – Although not discussed by the parties, constructive trusts generally are defined by Civil Code sections 2223 and 2224. “One who gains a thing by fraud, accident, mistake, undue influence, the violation of a trust, or other wrongful act, is, unless he or she has some other and better right thereto, an involuntary trustee of the thing gained, for the benefit of the person who would otherwise have had it.” (Civ. Code, § 2224.) “A constructive trust is an involuntary equitable trust created by operation of law. The essence of the theory of constructive trust is to prevent unjust enrichment and to prevent a person from taking advantage of his or her own wrongdoing.” (*Campbell v. Superior Court* (2005) 132 Cal.App.4th 904, 920.) “[A] constructive trust may only be imposed where the following three conditions are satisfied: (1) the existence of a res (property or some interest in property); (2) the right of a complaining party to that res; and (3) some wrongful acquisition or detention of the res by another party who is not entitled to it.” (Campbell, *supra*, 132 Cal.App.4th at p. 920.)

Like in the quiet title cause of action, Plaintiff must show that he has a right to the property and Defendant is not entitled to it. For the reasons discussed above, it does not appear that Plaintiff can meet his burden of showing a probable validity of claim.

16. *Sanchez v. Silva, et al*, Case No. CIVSB2406108
Motion for Leave to File Third Amended Complaint
8/31/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court is inclined to **GRANT** this unopposed motion for leave to file a Third Amended Complaint (TAC). Plaintiff will have twenty days’ leave to file the TAC.

A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Here, the motion and supporting documents indicate no prejudice to Defendant. (Mtn., 5:11-15 [no prejudice and will not delay trial].) Thus, the Court would grant this motion.

TENTATIVE